

---

Order. For all services provided under this Agreement, both Purchaser and Sierra Support Centre must agree to and sign the Work Order before any obligations are incurred by either party as to the requested Services.

2. Term of Agreement.

The term of this Agreement will commence on the date first set forth above and will continue for a period of one (1) year ("Term"), or until earlier terminated as provided in paragraph 16, below. If any Work Order issued hereunder remains in effect upon the expiration of the Term, the Term automatically will extend to cover the completion of such Work Order. Sierra Support Centre may cancel a Work Order immediately if Customer terminates such services.

3. Fees and Payment Terms.

For the Services provided by Subcontractor, Sierra Support Centre agrees to pay Subcontractor the hourly fee agreed upon in the Work Order(s). Subcontractor shall invoice Sierra Support Centre for Services rendered under this Agreement every thirty days of performance of such Services, such that 30 days billing cycle with 30 days payment net after the receipt of correct invoice from the subcontractor. At no time will Subcontractor deviate, alter or make an agreement with Customer, directly or indirectly, to change the fees for services provided under this Agreement. Notwithstanding the foregoing, Sierra shall not be obligated to pay any invoices or portions thereof which the client disputes due to performance issues and notifies Contractor or Sierra of the nature of the dispute or Client does not pay Sierra for services under this agreement due to performance issues.

4. Expenses.

Sierra Support Centre shall not be responsible for any expenses incurred by Subcontractor unless (i) specifically approved in advance in writing by Sierra Support Centre; and (ii) properly documented and supported.

5. Incorporation of Customer Terms and Conditions.

The subcontractor and Sierra Support Centre understand and acknowledge that it is the intent and requirement of Customer that all services rendered to Customer, whether by Sierra Support Centre or by Subcontractor, be rendered according to a consistent and uniform set of guidelines, rules and contract terms. Therefore, with the exception of those terms of this Subcontract Agreement which are specific and unique to Sierra Support Centre and Subcontractor (including but not limited to Payment of Services, Assignment, Termination, Non-Solicitation), the parties agree that in the event there is any conflict between the terms of the Customer agreement (more rigorous terms) and the terms of this Subcontract Agreement, then the terms of the Customer contract will govern and control. Examples of Customer contract terms which may be more rigorous than the terms set forth herein may be Confidentiality, Insurance, Warranty or Indemnification requirements.